

HOUSE No.



MAURA T. HEALEY
GOVERNOR

OFFICE OF THE GOVERNOR
COMMONWEALTH OF MASSACHUSETTS
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KIMBERLEY DRISCOLL
LIEUTENANT GOVERNOR

April 14, 2026

To the Honorable Senate and House of Representatives,

I am filing for your consideration a bill entitled An Act Making Appropriations for Fiscal Year 2026 (FY26) to Provide for Supplementing Certain Existing Appropriations and for Certain Other Activities and Projects.

These mid-year appropriations are necessary to fund critical and time-sensitive needs and to cover previously unplanned costs, most notably expenses tied to cleanup from the extraordinary weather experienced throughout Massachusetts during the 2025-2026 winter season.

The proposal I am filing today would appropriate a total of \$227.3 million, including \$159.8 million for snow and ice removal costs for the Massachusetts Department of Transportation and the Department of Conservation and Recreation that is beyond what was allocated in the FY26 General Appropriations Act. This bill proposes covering those costs through a shared reserve funded with excess surtax collections in FY26.

The severe weather of this past winter, including a record-setting blizzard in parts of our state, also required added personnel and safety response expenditures. For this purpose, I am requesting a total of \$11.2 million for the Executive Office of Public Safety and Security, which includes \$9.5 million for the Massachusetts Emergency Management Agency and \$1.7 million in National Guard activation costs.

Other appropriations recommended in this bill include:

- \$14.1 million for the Bureau of Substance Addiction Services tied to increased Section 35 utilization

- \$12.5 million for no cost calls for sheriffs
- \$10 million for no cost calls for the Department of Correction
- \$8.2 million for the Executive Office of Housing and Livable Communities
- \$2.9 million for the State Police crime lab to avoid delays and increased case backlog
- \$1.1 million for the Chief Medical Examiner
- \$1.75 million for District Attorney information technology expenses

As I promised to do at the beginning of the year, this bill also proposes new social media protections for children under 18 years old -- such as mandatory age assurance systems and default privacy and safety settings -- to address the demonstrated negative impacts that unrestricted social media access can have on young people. I am grateful that the Legislature shares our administration's interest in tackling this important issue and view our proposal as a complement to the work already underway by our partners in the House and Senate. Under this proposal, social media platforms must establish default settings that disable addictive features like continuous scrolling, algorithmic feeds, and notifications and account access during certain hours for children under 18. A parent or legal guardian must consent to the modification of these default settings for users 15 or younger, while users 16 or older may alter their own accounts' default settings. The bill will also require social media platforms to provide children under 18 with the ability to flag unwanted or harmful content. Social media companies that violate the restrictions in the bill will face steep fines.

As you know, my administration inherited a shelter system that was not equipped to handle the surge in demand that our state was facing. In partnership with the Legislature, I reformed the Right to Shelter law for the first time in state history — requiring proof of residency and lawful immigration status and implementing length of stay limits and criminal background checks. None of these safeguards were in place when I took office. As a result, caseload is lower than when I took office and costs are down by hundreds of millions of dollars. Additionally, more than 90% of families in the shelter system are now long-time Massachusetts residents. In response to declining caseload, this budget proposes programmatic updates to help make sure we can serve Massachusetts families in need, without adding new costs for taxpayers. That includes adjusting the six-month length-of-stay policy in the emergency shelter system to a nine-month length of stay and increasing the emergency assistance income threshold to 120 percent of federal poverty guidelines to better reflect cost-of-living pressures and align with similar programs.

Other notable outside policy sections include:

- Amended hunting laws, including the removal of the Sunday hunting ban

- Permission for cities and towns to amortize FY26 snow- and ice-removal related deficits over three years
- Allowance for pre-construction condominium buyer deposits to be used for construction costs, facilitating development while protecting consumers
- The redirection of underutilized offshore wind tax credits to promote renewable energy and vital urban economic development
- Deletion of references to “out of wedlock” on birth and marriage certificates
- Expanded eligibility for veterans' bonuses from individuals who resided in the Commonwealth at least 6 months prior to enlistment to individuals who reside in the Commonwealth at the time of application
- Increased construction procurement thresholds for DCAMM projects in line with recent recommendations from the Public Construction Working Group

Sufficient revenues are available to finance the appropriations and other measures proposed in this bill. I urge you to promptly consider and enact this legislation.

Respectfully submitted,

Maura T. Healey,
Governor

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act making appropriations for the fiscal year 2026 to provide for supplementing certain existing appropriations and for certain other activities and projects.

Whereas, The deferred operation of this act would tend to defeat its purposes, which are to forthwith make supplemental appropriations for fiscal year 2026 and to make certain changes in law, each of which is immediately necessary to carry out those appropriations or to accomplish other important public purposes, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2026, the sums set forth in section 2 are hereby
3 appropriated from the General Fund or the Transitional Escrow Fund established in section 16 of
4 chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless
5 specifically designated otherwise in this act or in those appropriation acts, for the several
6 purposes and subject to the conditions specified in this act or in those appropriation acts, and
7 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
8 2026. These sums shall be in addition to any amounts previously appropriated and made
9 available for the purposes of those items. These sums shall be made available through the fiscal
10 year ending June 30, 2026.

11	SECTION 2.		
12	EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE		
13	<i>Office of the Secretary</i>		
14	1595-6153	No Cost Call Trust Fund Transfer.....	\$22,520,889
15	<i>Department of Revenue</i>		
16	1233-2401	Chapter 40S Education Payments.....	\$731,409
17	EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES		
18	<i>Department of Public Health</i>		
19	4512-0200	Bureau of Substance Addiction Services.....	\$14,071,288
20	EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES		
21	<i>Housing and Livable Communities</i>		
22	7004-0100	Operation of Homelessness Programs.....	\$8,181,007
23	7004-9315	Low-Income Housing Tax Credit Fee Retained Revenue.....	\$2,000,000
24	EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY		
25	<i>Office of the Chief Medical Examiner</i>		
26	8000-0105	Office of the Chief Medical Examiner.....	\$1,133,659
27	<i>Massachusetts State Police</i>		

28 8100-0102 Troop F Retained Revenue.....\$3,000,000

29 8100-1004 State Police Crime Laboratory.....\$2,881,350

30 *Military Division*

31 8700-0001 Military Division.....\$1,733,000

32 *Massachusetts Emergency Management Agency*

33 8800-0001 Massachusetts Emergency Management Agency.....\$9,470,266

34 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
35 provide for an alteration of purpose for current appropriations, and to meet certain requirements
36 of law, the sums set forth in this section are hereby appropriated from the General Fund or the
37 Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended
38 by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this
39 section, for the several purposes and subject to the conditions specified in this section, and
40 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
41 2026. Except as otherwise stated, these sums shall be made available through the fiscal year
42 ending June 30, 2027.

43 MASSACHUSETTS DISTRICT ATTORNEYS' ASSOCIATION

44 0340-0403 For technology costs related to Massachusetts Criminal Procedure Rule 14
45 implementation; provided, that funds may be transferred to the district attorneys' offices for this
46 purpose.....\$1,750,000

47 TRANSPORTATION

Massachusetts Department of Transportation

1596-2527 For the cost of snow and ice removal services incurred by the
Massachusetts Department of Transportation and the department of conservation and recreation;
provided, that funds in this item may be transferred to the Massachusetts Transportation Trust
Fund established under section 4 of chapter 6C of the General Laws; and provided further, that
funds in this item may be transferred to the department of conservation and
recreation.....\$159,800,000

Education and Transportation Fund...100%

SECTION 3. Subsection (k) of section 2 of chapter 6C of the General Laws, as appearing
in the 2024 Official Edition, is hereby amended by striking out, in line 145, the words
“\$15,000,000 or more” and inserting in place thereof the following words:- more than
\$30,000,000.

SECTION 4. Chapter 7 of the General Laws, as appearing in the 2024 Official Edition, is
hereby amended by inserting after section 22P the following section:-

Section 22Q. Notwithstanding section 39M of chapter 30, or any general or special law to
the contrary, a governmental body may, in a single procurement under this chapter, procure: (i)
broadband internet service; (ii) the design, installation, maintenance and operation of fiber optic
cables and other equipment to provide broadband internet service to a public building or
buildings; (iii) the design, installation, maintenance and operation of a wireless communication
network for a public building or public land or (iv) any combination of the foregoing. All such
fiber optic cables, wireless network equipment and other physical improvements designed,
installed, maintained and operated pursuant to such procurement shall be considered supplies.

SECTION 5. Section 5 of chapter 7C of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 4 and 13, the figure “\$250,000”, each time it appears, and inserting in place thereof, in each instance, the following words:- the estimated construction cost described in the first sentence of the third paragraph of section 59.

SECTION 6. Said section 5 of said chapter 7C, as so appearing, is hereby further amended by striking out, in line 9, the figure “\$5,000,000” and inserting in place thereof the following figure:- \$8,500,000.

SECTION 7. Said section 5 of said chapter 7C, as so appearing, is hereby further amended by striking out, in line 17, the figure “\$10,000,000” and inserting in place thereof the following figure:- \$17,000,000.

SECTION 8. Section 9 of said chapter 7C, as so appearing, is hereby amended by striking out, in lines 8 and 27, the figure “\$25,000”, each time it appears, and inserting in place thereof, in each instance, the following figure:- \$50,000.

SECTION 9. Section 29 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 5, the figure “\$25,000” and inserting in place thereof the following words:- the estimated construction cost described in the first sentence of the third paragraph of section 59.

SECTION 10. Section 46 of said chapter 7C, as so appearing, is hereby amended by striking out, in line 68, the figure “\$30,000” and inserting in place thereof the following figure:- \$50,000.

90 SECTION 11. Said section 46 of said chapter 7C, as so appearing, is hereby further
91 amended by striking out, in line 70, the figure “\$300,000” and inserting in place thereof the
92 following figure:- \$500,000.

93 SECTION 12. Section 51 of said chapter 7C, as so appearing, is hereby amended by
94 striking out, in line 51, the figure “\$30,000” and inserting in place thereof the following figure:-
95 \$50,000.

96 SECTION 13. Said section 51 of said chapter 7C, as so appearing, is hereby further
97 amended by striking out, in line 53, the figure “\$300,000” and inserting in place thereof the
98 following figure:- \$500,000.

99 SECTION 14. Section 54 of said chapter 7C, as so appearing, is hereby amended by
100 striking out, in line 56, the figure “\$30,000” and inserting in place thereof the following figure:-
101 \$50,000.

102 SECTION 15. Said section 54 of said chapter 7C, as so appearing, is hereby further
103 amended by striking out, in line 58, the figure “\$300,000” and inserting in place thereof the
104 following figure:- \$500,000.

105 SECTION 16. Section 59 of said chapter 7C, as so appearing, is hereby amended by
106 striking out, in lines 18 to 20, inclusive, the words “No provider of design services for any
107 building project for which a state agency is the using agency shall be selected by the designer
108 selection board or by the administering agency and” and inserting in place thereof the following
109 words:- For any building project with an estimated construction cost greater than \$500,000,.

110 SECTION 17. Section 35 of chapter 10 of the General Laws, as appearing in the 2024
111 Official Edition, is hereby amended by striking out the words “In order to provide local property
112 tax relief and continue services at the local level, revenues of the lottery commission from
113 whatever source”, in lines 7 to 9, inclusive, and inserting in place thereof the following words:-
114 (i) In order to provide local property tax relief and continue services at the local level, revenues
115 of the lottery commission from sales pursuant to subparagraph (a) of section 25 of chapter 10.

116 SECTION 18. Said section 35 of said chapter 10, as so appearing, is hereby further
117 amended by adding the following subparagraph:- (ii) In order to expand access to affordable,
118 high-quality childcare, revenues of the lottery commission from sales pursuant to subparagraph
119 (b) of said section 25 shall be expended only for the following purposes:

- 120 (a) For the payment of prizes to the holders of winning lottery tickets or shares;
- 121 (b) For the expenses of the commission in administering and operating the lottery;
- 122 (c) For the early education and care operational grant fund established by section 19 of
123 chapter 15D, subject to appropriation; and
- 124 (d) For the purposes of accommodating discrepancies between the receipt of revenues
125 and related expenditures, the commission may incur expenses and the comptroller may certify
126 for payment expenses incurred in anticipation of revenues.

127 SECTION 19. Subsection (a) of section 78 of said chapter 10, as so appearing, is hereby
128 amended by adding the following 4 paragraphs:-

129 As used in this section, the term “Korean Emergency” shall mean the period on or after
130 June 25, 1950 to January 31, 1955.

131 As used in this section, the term “Persian Gulf War” shall mean the period on or after
132 August 2, 1990 to April 10, 1991.

133 As used in this section, the term “Vietnam Conflict” shall mean the period on or after
134 July 1, 1958 to May 17, 1975.

135 As used in this section, the term “World War II” shall mean the period on or after
136 September 16, 1940 to July 25, 1947.

137 SECTION 20. Subparagraph (1) of subsection (b) of said section 78 of said chapter 10, as
138 so appearing, is hereby amended by inserting after the word “served”, in line 17, the following
139 words:- , or is currently serving,.

140 SECTION 21. Said subparagraph (1) of said subsection (b) of said section 78 of said
141 chapter 10, as so appearing, is hereby further amended by striking out, in lines 22 through 24,
142 inclusive, the words “have been in the commonwealth for a period of not less than 6 months
143 before the time of the person's entry into the service” and inserting in place thereof the following
144 words:- be the commonwealth.

145 SECTION 22. Subparagraph (5) of said subsection (b) of said section 78 of said chapter
146 10, as so appearing, is hereby amended by inserting after the word “Medal”, in line 49, the
147 following words:- , or equivalent Expeditionary Medal,.

148 SECTION 23. Said subparagraph (5) of said subsection (b) of said section 78 of said
149 chapter 10, as so appearing, is hereby further amended by striking out, in lines 55 through 57,
150 inclusive, the words “have been in the commonwealth for a period of not less than 6 months

151 immediately before the time of the person's entry into service” and inserting in place thereof the
152 following words:- be the commonwealth.

153 SECTION 24. Said subsection (b) of said section 78 of said chapter 10, as so appearing,
154 is hereby further amended by adding the following subparagraph:-

155 (6) Upon application, as provided in this section and as specified in rules and regulations
156 established by the treasurer, there shall be allowed and paid out of the treasury of the
157 commonwealth, without further appropriation, the sums specified in such rules and regulations to
158 each person who has served in the armed forces of the United States in active service as part of
159 World War II, the Korean Emergency, the Vietnam War or the Persian Gulf War; provided,
160 however, that the domicile of a person on account of whose service the application is filed shall
161 be the commonwealth; and provided further, that any veteran discharged or released under other
162 than honorable conditions due to sexual orientation, gender identity, gender expression or HIV
163 status based on the veteran's DD-214 form or equivalent documentation shall be eligible for a
164 bonus under this section.

165 SECTION 25. Subsection (e) of said section 78 of said chapter 10, as so appearing, is
166 hereby amended by striking out the fifth and sixth sentences.

167 SECTION 26. Said subsection (e) of said section 78 of said chapter 10, as so appearing,
168 is hereby further amended by striking out, in line 101, the word “section” and inserting in place
169 thereof the following word:- act.

170 SECTION 27. Said subsection (e) of said section 78 of said chapter 10, as so appearing,
171 is hereby further amended by striking out, in lines 111 and 112, the word “designed” and
172 inserting in place thereof the following word:- designated.

SECTION 28. Subsection (g) of said section 78 of said chapter 10, as so appearing, is hereby amended by inserting after the word “service”, in line 123, the following words:- during the enlistment period.

SECTION 29. Paragraph (i) of subsection (a) of section 7 of chapter 15D of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 38 to 41, inclusive, the words “and all supported findings and pending investigations of abuse or neglect available through the department of children and families consistent with sections 51B, 51E, and 51F of chapter 119” and inserting in place thereof the following words:- all supported findings and pending investigations of abuse or neglect available through the department of children and families consistent with sections 51B, 51E and 51F of chapter 119, and information contained in the disabled persons protection commission registry of abusive care providers as defined in section 15 of chapter 19C.

SECTION 30. Paragraph (ii) of said subsection (a) of said section 7 of said chapter 15D, as so appearing, is hereby further amended by adding the following sentence:- The department shall further obtain all information contained in the disabled persons protection commission registry of abusive care providers consistent with section 15 of chapter 19C.

SECTION 31. Paragraph (F) of section 30 of chapter 23B of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting, in line 180, after the word “appeal.”, the following sentence:- Provided, however, that assistance shall not be continued during the period of appeal for a termination arising from: (a) a reasonable cause to believe that a member of the household is engaging in or engaged in a criminal or significantly

dangerous activity that threatens the health, safety or security of self, other residents, guests or staff or (b) a lack of children or pregnant women remaining in the household.

SECTION 32. Subparagraph (1) of paragraph (G) of said section 30 of said chapter 23B, as so appearing, is hereby amended by inserting after the definition of “Non-state-funded overflow emergency shelter site” the following definition:-

“Rapid track site”, a shelter site for unhoused families in the commonwealth that is eligible to receive funding as a temporary respite site under item 1599-2625 of section 2A of chapter 1 of the acts of 2025.

SECTION 33. Subparagraph (3) of said paragraph (G) of said section 30 of said chapter 23B, as amended by section 4 of chapter 1 of the acts of 2025, is hereby further amended by striking out the figure “6” and inserting in place thereof the following figure:- 9.

SECTION 34. Said paragraph (G) of said section 30 of said chapter 23B, as so amended, is hereby further amended by striking out subparagraph (8) and inserting in place thereof the following subparagraph:-

(8) The executive office shall maintain rapid track sites that shall be available to eligible families, as determined by an assessment of family risk pursuant to guidance issued by the executive office, and shall be subject to appropriation, rules, regulations and availability, for a period of not more than 30 days, subject to any extensions upon written certification by the secretary of housing and livable communities; provided further, that rapid track sites shall only be available to families who provide information sufficient to comply with paragraph (C½); provided further, that the length of stay at a rapid track site shall constitute a benefit received under the emergency housing assistance program for the purpose of calculating length of stay

limit under subparagraph (3) of paragraph (G); provided further, that placement in a rapid track site shall not make a family ineligible for the bridge shelter track after proving eligibility pursuant to section 7 of chapter 1 of the acts of 2025. This subparagraph shall apply during any period in which the secretary of housing and livable communities has determined that the shelter system is no longer able to meet all current and projected demand for shelter from eligible families considering the facts and circumstances then existing in the commonwealth.

SECTION 35. Section 5 of chapter 23J of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 10, 11 and 22, the words “August 15”, each time they appear, and inserting in place thereof, in each instance, the following words:-
January 30.

SECTION 36. Section 9A of said chapter 23J, as so appearing, is hereby amended by striking out subsection (d) and inserting in place thereof the following subsection:-

(d) The center shall make no expenditure from the trust fund unless: (i) the expenditure has been approved by a majority vote of the board; (ii) the center finds, to the extent possible, that a definite benefit to the commonwealth's economy may reasonably be expected from said expenditure; and (iii) the expenditure conforms with any rules the board may adopt to administer the trust fund. In evaluating a request or application for funding, the center shall consider the following: (A) the appropriateness of the project; (B) whether the project has significant potential to expand employment; (C) the project's potential to enhance technological advancements; (D) the project's potential for leveraging additional funding or attracting resources to the commonwealth and (E) the project's potential to promote manufacturing in the commonwealth.

SECTION 37. Section 11C of chapter 25A of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 29, the words “\$1 million” and inserting in place thereof the following figure:- \$3,000,000.

SECTION 38. Chapter 26 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after section 8M the following section:-

Section 8N. The commissioner is hereby authorized to make and collect an assessment against pharmacy benefit managers licensed by the commissioner to pay for the expenses related to the regulation and oversight of pharmacy benefit managers, including to defray the salaries of any financial analysts, licensing staff, market conduct specialists, attorneys, special investigators, staff with expertise in pharmacy and pharmaceutical processes, senior health researchers, administrative staff or any other staff as may be necessary to carry out this function. Said assessment shall be made at a rate sufficient to produce at least \$1,000,000 annually and credited to the General Fund. The amount collected under this section shall be credited to the funds to which the appropriations for the division of insurance are charged.

The assessment shall be allocated on a fair and reasonable basis among all pharmacy benefit managers licensed by the commissioner. The funds produced by said assessments shall be expended by the division, in addition to any other funds which may be appropriated, to assist in defraying the general operating expenses related to the regulation and oversight of pharmacy benefit managers and may be used to compensate consultants retained by the commissioner for this purpose. A pharmacy benefit manager licensed by the commissioner shall pay the amount so assessed against it within 30 days after the date of the notice of assessment from the commissioner.

SECTION 39. Section 39M of chapter 30 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 21, 54, 57, 63, 66 and 163, each time it appears, the figure “\$50,000”, and inserting in place thereof, in each instance, the following figure:- \$75,000.

SECTION 40. Said section 39M of said chapter 30, as so appearing, is hereby further amended by striking out, in line 67, the figure “\$150,000” and inserting in place thereof the following figure:- \$250,000.

SECTION 41. Section 39R of said chapter 30, as so appearing, is hereby amended by striking out, in lines 5 to 6, 12 to 13, and 60 to 61, the words “thirty-eight A½ to thirty-eight O, inclusive, of chapter seven”, each time it appears, and inserting in place thereof, in each instance, the following words:- 44 to 57, inclusive, of chapter 7C.

SECTION 42. The first paragraph of subsection 4 of section 16 of chapter 32 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following 6 sentences:- If the chair of the board determines that the volume of appeals has resulted in a backlog, the chair may, in writing, inform the attorney general, the public employee retirement administration commission, and the governor of the backlog and need for additional board members to address it. If the backlog involves matters related to disability retirement or interim benefits, the chair may also, in writing, inform the secretary of health and human services. Upon notification by the chair of a backlog of appeals to the board, the attorney general, the public employee retirement administration commission, the governor, and, if such backlog involves matters related to disability retirement or interim benefits, the secretary of health and human services, shall, subject to availability of staffing, each designate or appoint

such number of additional members as determined by the chair, but not more than 4 additional members each. The secretary of health and human services may designate qualified staff from agencies within the executive office. The additional members shall be designated or appointed in the manner and ratio of the board itself to serve on the contributory retirement appeal board for not more than 3 years. The assistant attorney general designated as the chair shall organize such additional members into panels assigned to each matter pending before the contributory retirement appeal board, and a panel so organized shall be empowered to decide and resolve the appeal; provided that each panel so organized shall consist of three members reflecting the membership of the board with a chair of the panel as determined by the chair of the board.

SECTION 43. Chapter 46 of the General Laws is hereby amended by striking out section 2A and inserting in place thereof the following section:-

Section 2A. The department may issue regulations to ensure that sensitive information of a highly personal nature collected and recorded pursuant to section 1, which shall include but not be limited to social security numbers, is not examined nor copy provided except upon proper judicial order, or upon request of a person seeking their own birth or marriage record, or their attorney, parent, guardian, or conservator, or upon request of a person who has a legitimate need to access a vital record as specified in department regulations, or persons whose official duties, in the opinion of the town clerk or the state registrar of vital records, as the case may be, entitle them to the information contained therein. Copies of vital records to authorized individuals shall only be available as certified copies pursuant to section 33, and non-certified copies shall not be considered public records under clause Twenty-sixth of section 7 of chapter 4. The provisions of this section shall not apply (i) to records of birth or marriage older than 90 years, or (ii) to records of death older than 50 years.

SECTION 44. Section 12 of said chapter 46, as so appearing, is hereby amended by striking out the last sentence.

SECTION 45. Subsection (c) of section 13, and sections 19B and 24 of said chapter 46, as so appearing, are hereby repealed.

SECTION 46. The General Laws are hereby amended by inserting after chapter 93L the following chapter:-

CHAPTER 93M

ONLINE PROTECTION

Section 1. As used in this chapter, the following words shall, unless the context clearly requires otherwise, have the following meanings:-

“Account”, a unique profile for a user of a social media platform.

“Algorithmic ranking system”, an automated computational process, including a process derived from algorithmic decision making, machine learning, statistical analysis or other data processing or artificial intelligence techniques, used to determine the selection, order, relative prioritization or relative prominence of content to be recommended or displayed to a user based, in whole or in part, on information associated with the user, the user’s device or the user’s previous interactions with content shared by other users.

“Autoplay”, a feature of a social media feed or landing page where content is automatically and continuously played in a social media feed without any manual input from a user.

325 “Content”, text, image, audio or video created, shared or accessed through a social media
326 platform.

327 “Connected account”, an account directly connected to another account by an affirmative
328 request by 1 user and an affirmative confirmation by another user.

329 “Educational technology platform”, a software application or web-based technology,
330 including but not limited to Learning Management Systems (LMS), designed to provide school-
331 home communication, educational information, experiences, training or instruction to build
332 knowledge, skills or a craft, provided that, for purposes of this chapter: (i) the software
333 application or web-based technology is approved by the school district for the purpose of
334 communicating with parents or for conveying educational content to students; (ii) the school
335 district complies with the Family Educational Rights and Privacy Act of 1974 (FERPA), 20
336 U.S.C. 1232g, and its implementing regulations, 34 C.F.R. Part 99, in its use of any software
337 application or web-based technology; and (iii) the school district has an executed student data
338 privacy agreement governing the use of any software application or web-based technology that
339 collects student data that includes a requirement that the software application or web-based
340 technology complies with FERPA, 20 U.S.C. 1232g and 34 C.F.R. Part 99.

341 “Infinite scroll”, a feature of a social media feed or landing page that provides an
342 automatically and continuously loading social media feed or landing page where additional
343 content displays at the bottom of such feed or landing page without any manual input from a
344 user.

345 “Minor”, a user or prospective user who is under 18 years of age.

346 “Parent”, a parent or legal guardian.

“Precise geolocation data”, information derived from technology, including, but not limited to, latitude and longitude coordinates from global positioning system mechanisms or other similar positional data, that reveals the past or present physical location of an individual or device that identifies or is linked or reasonably linkable to 1 or more individuals with precision and accuracy within a radius of 1,750 feet.

“Social media feed”, the presentation of content to users of a social media platform that has been recommended, selected or prioritized for presentation or display to a user.

“Social media platform”, a public or semi-public website, online service, online application or mobile application that primarily serves as a medium for displaying content generated by users through a social media feed, and that allows users to create an account or profile to post, share, view and interact with user-generated content, provided however, that the following services shall not be included: (i) email, SMS, MMS, RCS or similar text messaging telecommunications; (ii) cloud storage services or document viewing, sharing or collaboration services; and (iii) an educational technology platform.

“User”, a Massachusetts resident who accesses or uses a social media platform by establishing an account or profile, or seeks to establish such an account or profile.

“User-directed feed”, a social media feed in which the content presented has been recommended, selected or prioritized for display based solely on the user’s expressly selected preferences, including content from connected accounts, content the user has subscribed to or content presented in response to a specific search inquiry by the user and that is displayed in chronological order or another sequence not based on an algorithmic ranking system.

368 Section 2. (a) A social media platform shall implement an age assurance system to
369 determine whether a user is a minor and, if so, to accurately identify a user's age to determine the
370 proper level of access to the social media platform's features pursuant to this section. The
371 attorney general may promulgate regulations identifying commercially reasonable and
372 technically feasible age assurance methods with measures reasonably calculated to accurately
373 identify a user's age and to identify the appropriate level of accuracy required.

374 (b) A social media platform shall implement a review process to allow users to appeal the
375 social media platform's designation of the user's age by submitting documentary evidence to the
376 social media platform to establish that the user is not a minor and the social media platform shall
377 review the documentary evidence submitted and make a determination on the appeal within 3
378 days.

379 (c) Any data or information collected and stored by the social media platform for use in
380 the age assurance system, or during any appeal of the age assurance system's determination,
381 shall not be used for any purpose other than age assurance and shall be deleted within 10 days of
382 an age determination or resolution of any appeal, except as necessary for compliance with any
383 applicable state or federal law or regulation.

384 Section 3. (a) Upon determination that an account belongs to a minor user, a social media
385 platform shall set the default settings of the minor user to ensure a heightened level of privacy
386 and limit the use of features that prolong that minor's engagement with the social media
387 platform. The default settings shall include, but not be limited to:

388 (i) restricting the visibility of the minor user's account to only connected accounts;

389 (ii) disabling the visibility or sharing of the minor user’s precise geolocation data with
390 other users;

391 (iii) limiting the minor user to only sharing content with connected accounts;

392 (iv) limiting the minor user to only direct messaging with connected accounts;

393 (v) presenting or displaying only a user-directed feed;

394 (vi) disabling autoplay or other auto-advance functions that continuously present content
395 to a user;

396 (vii) disabling infinite scroll or other endless scrolling or pagination functions;

397 (viii) disabling notifications to the minor user concerning a social media feed between the
398 hours of 10:00 p.m. and 7:00 a.m. and during hours when school is typically in session;

399 (ix) restricting a minor user from accessing the social media platform between the hours
400 of 10:00 p.m. and 7:00 a.m. and during hours when school is typically in session;

401 (x) providing a clear and conspicuous reminder to a minor user after accessing the social
402 media platform for more than 1 cumulative hour of use in any 24 hour period, and every 30
403 minutes of cumulative use thereafter, provided that the social media platform shall require the
404 minor user to acknowledge the reminder before proceeding to use the social media platform; and

405 (xi) restricting a minor user from accessing any social media platform for more than 2
406 cumulative hours of use in any 24 hour period.

(b) The default settings provided in subsection (a) for a minor user of a social media platform who is 15 years old or younger may be changed with parental consent pursuant to section 5.

(c) The default settings provided in subsection (a) for a minor user of a social media platform may be changed by a minor user who is 16 years old or older.

(d) The default settings provided in clause (ii) of subsection (a) for a minor user of a social media platform shall be adjustable in a manner that allows the sharing of the minor user's precise geolocation location data with only selected individual connected accounts.

(e) A social media platform shall restrict from public visibility a minor user's account within 1 hour of receiving a request for a restriction by a parent of a minor user who is 15 years old or younger or by a minor user and shall delete a minor user's account within 3 days of receiving a request for a deletion by a parent of a minor user who is 15 years old or younger or by a minor user. Any restriction or deletion pursuant to this subsection shall include all information and material made publicly available by the minor user on the social media platform. Nothing in this subsection shall require a social media platform to contravene any federal or state law or regulation or require a social media platform to delete information subject to a law enforcement investigation.

(f) A social media platform shall provide a conspicuous tool with each item of content to allow a minor user the ability to flag or otherwise indicate that the minor user found the content to be unwanted or harmful.

(g) A social media platform shall provide a conspicuous tool that enables a parent of a minor user who is 15 years old or younger or a minor user to reset the algorithmic ranking

system applied to the minor user's social media feed such that it clears the learned recommendation profile based on the minor user's previous interactions with content.

(h) A social media platform shall present clear and conspicuous warnings on the negative effects of social media use on social, emotional and physical health in at least the following circumstances: (i) upon the activation of a minor user's account and every 30 days thereafter, provided that the social media platform shall require the minor user to acknowledge the warning before proceeding to use the social media platform; (ii) whenever a parent seeks to adjust the default settings of a minor user of a social media platform pursuant to subsection (b) of section 3, provided that the social media platform shall require the parent to acknowledge the warning before proceeding to adjust the default settings and (iii) whenever a minor seeks to adjust the default settings of a social media platform pursuant to subsection (c) of section 3, provided that the social media platform shall require the minor to acknowledge the warning before proceeding to adjust the default settings.

The attorney general may, in consultation with the department of public health, the department of mental health and the department of elementary and secondary education, promulgate regulations setting forth the text and manner of presenting such warnings taking into consideration medical and sociological research, including from government publications and peer-reviewed scholarly articles.

(j) Nothing in this chapter shall be construed as preventing any action taken in good faith to restrict access to or availability of content that a social media platform considers to be obscene, lewd, lascivious, excessively violent, harassing or otherwise objectionable or harmful content, whether or not such content is constitutionally protected.

451 Section 4. (a) A social media platform shall clearly and conspicuously post de-identified
452 aggregate data on minors' use of the social media platform on its website on at least a quarterly
453 basis. Such data shall include but not be limited to: (i) the number of minors who use the
454 platform, broken down by age or age range; (ii) the amount of time minor users spend on the
455 platform, broken down by age or age range; and (iii) the frequency and type of modification of
456 default settings for social media accounts used by minors. The attorney general may promulgate
457 regulations requiring the reporting of additional de-identified aggregate data about minors' use of
458 social media platforms.

459 (b) Every 30 days, the social media platform shall survey minor users to determine
460 whether, and to what extent, each minor user has experienced unwanted or harmful activity on
461 the social media platform. The social media platform shall make available de-identified
462 aggregate data on the results of these surveys and the flagging of unwanted or harmful content
463 pursuant to subsection (f) of section 3 on its website on at least a quarterly basis.

464 Section 5. A social media platform shall establish a mechanism by which the parent of a
465 minor user may adjust the default settings pursuant to subsection (b) of section 3 or reset the
466 algorithmic ranking system applied to the minor user's social media feed pursuant to subsection
467 (g) of section 3; provided, however, nothing in this chapter shall be construed as requiring a
468 social media platform to provide a parent any additional or special access to or control over the
469 data or accounts of their minor user child.

470 Section 6. A violation by a social media platform of the provisions of this chapter shall be
471 deemed an unfair or deceptive act or practice in trade or commerce under the provisions of
472 chapter 93A. A violation of section 2 or section 3 shall be punished by a civil fine of not more

than \$5,000 per violation. Each user affected by a violation of section 2 or section 3 shall be considered a separate violation under this section. A violation of section 4 shall be punished by a civil fine of not more than \$1,000,000. Each day that a violation of section 4 occurs shall be considered a separate violation under this section.

Section 7. The attorney general may promulgate regulations necessary to effectuate the purposes of this chapter.

SECTION 47. Section 72W of chapter 111 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following paragraph:-

The department of public health may, without a prior hearing, suspend or refuse to renew the certification of a certified nurses' aide who poses an immediate and serious threat to the public health, safety or welfare, provided a hearing is afforded to the certified nurses' aide, pursuant to chapter 30A, within 7 days of the department's action to determine whether such summary action was warranted.

SECTION 48. Section 72W½ of said chapter 111, as so appearing, is hereby amended by inserting after subsection (g) the following subsection:-

(h) The department of public health may, without a prior hearing, suspend or refuse to renew the certification of a certified medication aide who poses an immediate and serious threat to the public health safety or welfare, provided a hearing is afforded to the certified medication aide, pursuant to chapter 30A, within 7 days of the department's action to determine whether such summary action was warranted.

SECTION 49. Said chapter 112, as so appearing, is hereby amended by inserting after section 61 the following section:-

Section 61½. A board of registration under the supervision of the department of public health may, without a prior hearing, suspend or refuse to renew the license of a licensee who poses an immediate and serious threat to the public health, safety or welfare, provided a hearing is afforded to the licensee, pursuant to chapter 30A, within 7 days of the board's action to determine whether such summary action was warranted.

SECTION 50. Section 1 of chapter 131 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the definition of "Angling" the following definition:- "Archery equipment", any bow, arrow, bolt, or crossbow.

SECTION 51. Section 57 of said chapter 131, as so appearing, is hereby repealed.

SECTION 52. Section 58 of said chapter 131, as so appearing, is hereby amended by striking out, in lines 1 and 2, the words "or release any arrow" and inserting in place thereof the following words:- or hunt by any means.

SECTION 53. Said section 58 of said chapter 131, as so appearing, is hereby further amended by adding the following 2 sentences:- Notwithstanding the previous sentence, a person shall not discharge archery equipment upon or across a state highway or hard surfaced highway, or within 150 feet, of any such highway, or hunt with archery equipment on the land of another within 250 feet of a dwelling in use, except as authorized by the owner or occupant thereof. Nothing in this section shall apply to falconry.

513 SECTION 54. Section 60 of said chapter 131, as so appearing, is hereby amended by
514 striking out, in lines 1, 5 and 6, the words “bow and arrow”, each time they appear, and inserting
515 in place thereof, in each instance, the following words:- archery equipment.

516 SECTION 55. Section 61 of said chapter 131, as so appearing, is hereby amended by
517 striking out, in line 1, the words “bow and arrow” and inserting in place thereof the following
518 words:- archery equipment.

519 SECTION 56. Section 62 of said chapter 131, as so appearing, is hereby amended by
520 striking out, in lines 7 and 8, the words “bow and arrow” and inserting in place thereof the
521 following words:- archery equipment.

522 SECTION 57. Section 64 of said chapter 131, as so appearing, is hereby amended by
523 striking out, in lines 2 and 3, the words “or any crossbow, except as provided in section 69,”.

524 SECTION 58. Section 65A of said chapter 131, as so appearing, is hereby amended by
525 striking out, in line 5, the words “bow and arrow” and inserting in place thereof the words:-
526 archery equipment.

527 SECTION 59. Said chapter 131, as so appearing, is hereby further amended by striking
528 out section 69 and inserting in place thereof the following section:-

529 Section 69. A person shall not carry or use archery equipment while hunting except in
530 compliance with regulations of the division. The director is hereby authorized to promulgate
531 regulations to implement this section. Such regulations shall prescribe general design and weight
532 of pull and type of archery equipment, and shall conform to standards generally accepted for
533 hunting purposes.

SECTION 60. Section 29 of chapter 149 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 6, the figure “\$25,000” and inserting in place thereof the following figure:- \$50,000.

SECTION 61. Section 44A of said chapter 149, as so appearing, is hereby amended by striking out, in lines 68, 87, 91 and 107, the figure “\$50,000”, each time it appears, and inserting in place thereof, in each instance, the following figure:- \$75,000.

SECTION 62. Said section 44A of said chapter 149, as so appearing, is hereby further amended by striking out, in lines 108, 119 and 127, the figure “\$150,000”, each time it appears, and inserting in place thereof, in each instance, the following figure:- \$250,000.

SECTION 63. Section 44A 1/2 of said chapter 149, as so appearing, is hereby amended by striking out, in line 8, the figure “\$1,500,000” and inserting in place thereof the following figure:- \$2,500,000.

SECTION 64. Section 44F of said chapter 149, as so appearing, is hereby amended by striking out, in lines 6 and 42, the figure “\$25,000”, each time it appears, and inserting in place thereof, in each instance, the following figure:- \$50,000.

SECTION 65. Chapter 152 of the General Laws is hereby amended by striking out section 25A and inserting in place thereof the following section:-

Section 25A. In order to promote the health, safety and welfare of employees, every employer shall provide for the payment to their employees of the compensation provided for by this chapter in the following manner:

(1) By insurance with an insurer or by membership in a workers' compensation self-insurance group, established pursuant to the provisions of sections 25E to 25U, inclusive, or

(2) Subject to the rules of the department, by obtaining from the department annually a license as a self-insurer by conforming to the provisions of 1 of the 2 following subparagraphs and also to the provisions of subparagraph (c) if required. Every employer desiring to be licensed as a self-insurer shall make application for such license on a form provided by the department. The application shall contain: (1) a sworn itemized statement of the assets and liabilities of the applicant; (2) a payroll report for the preceding fiscal year of the applicant; (3) a detailed description of the nature and kind of business carried on.

(a) By keeping on deposit with the state treasurer in trust for the benefit and security of employees such amount of securities, not less in market value than \$100,000, as may be required by the department, said securities to be in the form of cash, bonds, stocks or other evidences of indebtedness as the department may require, and to be used, liquidated and disbursed only upon order of the department for the purposes of paying the benefits provided for by this chapter. The department shall, at least annually, and at its discretion more frequently, determine the liabilities of a self-insurer both incurred or to be incurred because of personal injuries to employees under this chapter. The department shall require an additional deposit or further security when the sum of the self-insurer's liability both incurred or to be incurred exceeds the deposit or any required reinsurance, or permit a decrease of said deposit provided the value of said deposit in no case shall be less than \$100,000. The department may permit a substitution of securities in place of those deposited. Interest, dividends and other income from said deposit or deposits shall be payable to the employer that deposited them, unless the department directs otherwise. The deposit or deposits may be returned to the employer if the employer shall: (i) insures with an

insurer under paragraph (1) of this section, or (ii) qualifies as a self-insurer under subparagraph (b) of this section, or (iii) ceases to transact business in the commonwealth; provided, that the employer must demonstrate, to the satisfaction of the department that they are not under any obligation to pay compensation under this chapter, or, if the department so requires, they furnish the department with a single premium non-cancellable policy, insuring the employer against any liability that may have arisen under this chapter, or with a bond executed as surety by some company with a rating of “A” or higher authorized to transact the business of workers' compensation insurance in this commonwealth, in an amount and form approved by the department, guaranteeing the payment of any liability on the employer's part that may have arisen under this chapter. No deposit so deposited shall be assignable or subject to attachment or be liable in any way for the debt of the self-insurer. If an employer engaged in interstate or foreign commerce certifies that the laws of the United States provide for liability for injury to or death of its employees, the deposit shall be returned to the employer less such amount as determined by the department as necessary to satisfy against liability that may already have arisen under this chapter; and provided that such determination by the department shall be reviewable by the superior court for the county in which the employer resides, or, in the case of a corporation, where said corporation has a principal place of business. Any bond issued pursuant to this paragraph shall remain in full force and effect until a new bond is issued on the same conditions as a bond issued under subsection 2(b) and with an effective date approved by the department, and shall be subject to all provisions of this chapter and 452 CMR 5.00.

(b) By furnishing annually a bond running to the commonwealth, with a surety company with a rating of “A” or higher authorized to transact business in the commonwealth as surety, in such form as may be approved by the department and in such amount not less than \$100,000 as

may be required by the department. Said bond shall be upon the condition that if the license of the principal shall be revoked, or if the principal shall cease to transact business in the commonwealth, or if the department shall refuse to renew the license, or if the principal shall insure with an insurer, then the department may, in its discretion, demand, and the principal then shall, deposit with the state treasurer one of the following: (i) an amount of securities equal to the penal sum of the bond, or (ii) a single premium non-cancellable policy issued by some insurance company authorized to transact the business of workers' compensation insurance in this commonwealth, insuring the principal against any liability that may have arisen under this chapter, or (iii) a bond executed as surety by some company with an "A" rating or above authorized to transact the business aforesaid in this commonwealth, in an amount and form approved by the department, guaranteeing the payment of any liability on the principal's part that may have arisen under this chapter. Unless the department has made such demand and the principal has made such deposit with the treasurer, such bond shall remain in full force and effect for any and all liabilities of the self-insurer under this chapter. No deposit with the treasurer under this section shall be assignable or subject to attachment or be liable in any way for the debt of the self-insurer.

The department shall at least annually determine the liabilities of a self-insurer both incurred or to be incurred because of personal injuries to employees under this chapter. The department may at any time require an additional bond, similarly conditioned, or further security or permit a decrease in the amount of said bond provided the amount of the bond or the bonds in no case shall be less than \$100,000. The liability of the surety shall not exceed in the aggregate the penal sum or sums stated in any such annual bond or bonds or in any endorsements giving effect to any such increase or reduction. The department may permit a substitution of a new bond

or bonds for the bond or bonds which have been furnished and shall return the old bond or bonds to the self-insurer as soon as a new annual bond has been obtained. Any bond for which the department permits or requires substitution shall remain in full force and effect until a new bond is obtained with an effective date approved by the department. When a surety bond is activated under this chapter, the surety bond company shall, within 10 days of the activation, commence payment of any liabilities that may arise or have arisen under this chapter on behalf of the principal.

(c) As a further guarantee of a self-insurer's ability to pay the benefits provided for by this chapter to injured employees, every self-insurer shall make arrangements satisfactory to the department, by reinsurance, to protect it from extraordinary losses or losses caused by one disaster.

Such reinsurance shall be in such amounts and form as the department may approve and shall be effected with a company as provided in section 20 of chapter 175, provided, the minimum amount shall be not less than \$500,000. Such reinsurance shall provide that the use or disposition of any money received by a self-insurer or former self-insurer under any such reinsurance shall be subject to the approval of the department, and no such money shall be assignable or subject to attachment or be liable in any way for the debt of the self-insurer unless incurred under this chapter. In the event that a surety bond is activated under this section, such reinsurance shall continue and such reinsurer shall continue to make payments on claims for which payments have already commenced, commence payment on claims that reach the retention level set in the applicable reinsurance policy, and, upon exhaustion of the surety bond or development of any deficiency in the bond, commence or continue payments for any liabilities that may arise or have arisen under this chapter.

646 The provisions of this paragraph shall not apply to common carriers by railroad which are
647 subject to the provisions of the federal Employers Liability Act.

648 (3) The department may make rules governing self-insurers, and may revoke or refuse to
649 renew the license of a self-insurer because of the failure of such self-insurer promptly to make
650 payments of compensation provided for by this chapter, or for any other reasonable cause. Any
651 person aggrieved by the action of the department in refusing to grant a license or in revoking, or
652 refusing to renew, a license of a self-insurer under this section or by the action of the department
653 in requiring an additional deposit or further security under paragraph (a) of this section, or in
654 requiring a further bond or security for an additional sum under paragraph (b) of this section may
655 demand a hearing before the department, and if, after said hearing, the department denies their
656 petition, the person may within 10 days after receipt of a notice stating reasons for such denial,
657 file a petition in the superior court for Suffolk county for a review thereof; but the filing of such
658 a petition shall not suspend the action of the department unless a stay thereof shall be allowed by
659 the justice pending a final determination by the court. The court shall summarily hear the petition
660 and may make any appropriate order or decree.

661 (4)(a) The commissioner of insurance shall require each insurer issuing a policy under
662 this chapter to offer, as a part of the policy or as an optional endorsement to the policy,
663 deductibles, including reasonable small deductibles optional to the policyholder for benefits
664 payable under this chapter. Deductible amounts offered shall be fully disclosed to the prospective
665 policyholders in writing in amounts determined by the commissioner. The policyholder
666 exercising the deductible option shall choose only 1 deductible amount.

(b) If the policyholder exercises the option and chooses a deductible, the insured employer shall be liable for the amount of the deductible for benefits paid for each compensable claim of work injury suffered by an employee or, at the option of the policyholder, an aggregate deductible as determined by the commissioner. The insurer shall pay all or part of the deductible amount, whichever is applicable, to a compensable claim, to the person or medical provider entitled to the benefits conferred by this chapter and then seek reimbursement from the insured employer for the applicable deductible amount. The payment or nonpayment of deductible amounts by the insured employer to the insurer shall be treated under the policy insuring the liability for workers' compensation in the same manner as payment or nonpayment of premiums.

(c) Optional deductibles shall be offered in each policy insuring liability for workers' compensation that is issued, delivered, issued for delivery, or renewed under this chapter on or after a date to be determined by the commissioner, unless an insured employer and insurer agree to renegotiate a workers' compensation policy in effect, so as to include a provision allowing for a deductible.

(d) Premium reductions for deductibles shall be determined by the commissioner of insurance. The commissioner of insurance may adopt rules or promulgate regulations to enforce the provisions of this section relative to workers' compensation insurance deductibles.

(e) This subsection shall not apply to employers who are approved to self-insure against liability for workers' compensation or group self-insurance funds for workers' compensation established pursuant to the provisions of this chapter.

(f) The commissioner of insurance may promulgate regulations to enforce the provisions of this section.

SECTION 66. Subsection (t) of section 3 of chapter 161A of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in line 162, the figure “\$15,000,000” and inserting in place thereof the following figure:- \$30,000,000.

SECTION 67. Section 7 of chapter 175M of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in lines 26, 66, 70 and 75, the figure “140”, each time it appears, and inserting in place thereof the following figure:- 120.

SECTION 68. Section 10 of chapter 183A of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out, in subsection (j), the words “The declarant shall not” and inserting in place thereof the following words:- Except as otherwise provided for pursuant to section 25, the declarant shall not.

SECTION 69. Said chapter 183A of the General Laws is hereby amended by adding the following section:-

Section 25. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Eligible costs”, expenditures for the construction and development of a condominium and the units thereof, including, but not limited to, materials, labor, demolition, pre-construction design and site clearing costs, and other similar costs as may be designated by regulation.

“Eligible costs escrow account”, an account in a financial institution located in the commonwealth where a pre-construction deposit for eligible costs is held by an escrow agent.

“Escrow agent”, a third-party holder of a pre-construction deposit held in an eligible costs escrow account pursuant to this section, and shall include a licensed title insurance company, an

710 attorney, a licensed real estate broker or an institution whose accounts are insured by a
711 governmental agency or instrumentality, or any other person as provided for by regulation.

712 “Person”, a natural person, partnership, whether general or limited and whether domestic
713 or foreign, limited liability company, foreign limited liability company, trust, estate, association,
714 corporation, custodian, nominee or any other individual or entity.

715 “Pre-construction deposit”, funds delivered by a prospective purchaser of a unit prior to
716 the substantial completion thereof, where the seller and prospective purchaser mutually agree in
717 writing that a portion of such funds may be used for eligible costs.

718 “Prospective purchaser”, a person who has made an offer to purchase a unit that is part of
719 a condominium.

720 “Seller”, a person that is constructing or causing to be constructed any unit that is a part
721 of a condominium.

722 “Substantial completion”, the issuance of a certificate of occupancy for the entire
723 building where the unit is located.

724 (b) Notwithstanding subsection (j) of section 10, a seller and prospective purchaser may,
725 by mutual written agreement, authorize the seller to use not more than 90 per cent of a pre-
726 construction deposit for eligible costs; provided, that such written agreement shall be
727 incorporated into any contract for the sale of the unit or any purchase and sale agreement for the
728 unit, whichever is executed first.

729 (c) (1) A written agreement pursuant to subsection (b) shall contain the following:

730 (i) A provision that requires the pre-construction deposit to be held in an eligible costs
731 escrow account;

732 (ii) A provision that requires the seller to obtain and maintain a surety bond, letter of
733 credit or other financial guarantee as a condition to withdraw funds from the eligible costs
734 escrow account in accordance with paragraph (3);

735 (iii) A provision that requires not less than 10 per cent of a pre-construction deposit held
736 in an eligible costs escrow account to be held in such escrow account during the pendency of a
737 transaction until the transaction is consummated or terminated;

738 (iv) The following statement in boldfaced type or capital letters no smaller than the
739 largest type on the first page of such agreement:

740 “PRE-CONSTRUCTION DEPOSITS MADE PRIOR TO CLOSING PURSUANT TO
741 THIS CONTRACT MAY BE USED FOR CONSTRUCTION PURPOSES BY THE SELLER
742 TO THE EXTENT ALLOWED BY THIS AGREEMENT AND M.G.L. c. 183A, § 25.”; and

743 (v) Any other provisions required by regulations promulgated by the executive office of
744 housing and livable communities pursuant to subsection (e).

745 (2) A pre-construction deposit delivered by a prospective purchaser pursuant to an
746 agreement executed in accordance with paragraph (1) shall be held in an eligible costs escrow
747 account until:

748 (i) refunded to the prospective purchaser;

749 (ii) delivered to the seller at closing;

(iii) delivered to the seller upon the prospective purchaser's default; or

(iv) distributed to the seller in accordance with paragraph (3).

(3) Funds held in an eligible costs escrow account may be distributed to the seller or its designee for eligible costs only if and to the extent:

(i) the agreement executed pursuant to paragraph (1) describes the extent to which a pre-construction deposit may be used to pay for eligible costs;

(ii) the seller provides to the escrow agent: (A) a copy of the agreement executed pursuant to paragraph (1); (B) a reasonably detailed description of the eligible costs to be paid by the distribution from the eligible costs escrow account; and (C) any of the following: (i) a surety bond issued by a licensed third-party surety company in an amount equivalent to or greater than the amount of pre-construction deposit being requested, ensuring repayment to the escrow agent or prospective purchaser if the seller fails to deliver the unit in a timely manner or to the extent the prospective purchaser is entitled to such return pursuant to and subject to the agreement executed pursuant to paragraph (1), (ii) an irrevocable letter of credit obtained by the seller, for at least the full amount of the pre-construction deposit held in an eligible costs escrow account, ensuring repayment to the escrow agent or prospective purchaser if the seller fails to deliver the unit in a timely manner or to the extent the prospective purchaser is entitled to such return pursuant to and subject to the agreement executed pursuant to paragraph (1) or (iii) any other equivalent financial guarantee as may be authorized by the executive office of housing and livable communities pursuant to subsection (e).

(d) An escrow agent who in good faith releases all or any portion of the funds in accordance with this section and pursuant to the agreement executed pursuant to subsection (b)

772 shall have no obligation to monitor the progress of construction or the expenditure of the funds
773 by the seller and shall not be liable to the prospective purchaser for the release of funds in
774 accordance with said agreement.

775 (e) The executive office of housing and livable communities may promulgate regulations
776 for the administration of this section.

777 SECTION 70. Section 15 of chapter 207 of the General Laws is hereby repealed.

778 SECTION 71. Chapter 731 of the acts of 1945, as amended by chapters 210 and 581 of
779 the acts of 1946, is hereby repealed.

780 SECTION 72. Chapter 210 of the acts of 1946, as amended by chapter 581 of the acts of
781 1946, is hereby repealed.

782 SECTION 73. Chapter 581 of the acts of 1946 is hereby repealed.

783 SECTION 74. Chapter 440 of the acts of 1953 is hereby repealed.

784 SECTION 75. Chapter 646 of the acts of 1968, as amended by chapter 325 of the acts of
785 1969, is hereby repealed.

786 SECTION 76. Chapter 325 of the acts of 1969 is hereby repealed.

787 SECTION 77. Subsection (e) of section 9 of chapter 152 of the acts of 1997 is hereby
788 amended by inserting after the word “Fund” the following words:- and provided further, that the
789 surcharge shall not apply to vehicular rental transaction contracts entered into with a car-sharing
790 organization, as defined in section 32J of chapter 90 of the General Laws,.

791 SECTION 78. Section 16 of chapter 130 of the acts of 2005 is hereby repealed.

SECTION 79. Section 71 of chapter 10 of the acts of 2015, as amended by chapter 146 of the acts of 2020, is hereby further amended by striking out the figure “2026” and inserting in place thereof the following figure:- 2032.

SECTION 80. Chapter 183 of the acts of 2022 is hereby amended by striking out section 4 and inserting in place thereof the following section:-

SECTION 4. The parcels of land that may be transferred to the department of agricultural resources pursuant to section 3 contain approximately 175 acres, and are shown as the agricultural fields numbered 4, 5, 10, 11, 12, 13, 14A, 14C, 15, 16, 17, 18, 19, 20 and 22 on the plan entitled “Plan of Land in Templeton, MA” prepared by Northeast Survey Consultants and dated July 27, 2017 on file with the division of capital asset management and maintenance, subject to modifications pursuant to section 3 and the parcel shown as AF 13 and the western portion of AF1 containing approximately 54 acres on the plan entitled “Plan of Land in Templeton, MA & Phillipston MA” prepared by Northeast Survey Consultants and dated March 18, 2025 and recorded in Worcester County Registry of Deeds Plan Book 983, Plan 11.

SECTION 81. Said chapter 183 is hereby further amended by striking out section 6 and inserting in place thereof the following section:-

SECTION 6. The agricultural fields and parcels that may be conveyed pursuant to section 5 are the agricultural fields numbered 2, 3, 6, 7, 8, 9 and 14B and the parcels labeled LA 2, LA 3 and LA 4 on the plan entitled “Plan of Land in Templeton, MA” prepared by Northeast Survey Consultants and dated July 27, 2017 on file with the division of capital asset management and maintenance, subject to modifications pursuant to section 5, and the parcels shown as SP2, SP6 and the eastern portion of AF1 containing approximately 10 acres on the plan entitled “Plan of

814 Land in Templeton, MA & Phillipston MA” prepared by Northeast Survey Consultants and dated
815 March 18, 2025 and recorded in Worcester County Registry of Deeds Plan Book 983, Plan 11.

816 SECTION 82. Item 1596-2511 of section 2A of chapter 7 of the acts of 2025 is hereby
817 amended by adding the following words:- ; provided further, that the commissioner of early
818 education and care may transfer funds from this item to items 3000-3060 and 3000-4060.

819 SECTION 83. Item 7004-0101 of section 2 of chapter 9 of the acts of 2025 is hereby
820 amended by striking out the figure “115” and inserting in place thereof the following figure:-
821 120.

822 SECTION 84. Said item 7004-0101 of said section 2 of said chapter 9 is hereby further
823 amended by striking out the figure “2025” and inserting in place thereof the following figure:-
824 2026.

825 SECTION 85. Item 7004-9315 of section 2 of chapter 9 of the acts of 2025 is hereby
826 amended by striking out the figure “\$3,571,512”, each time it appears, and inserting in place
827 thereof, in each instance, the following figure:- \$5,571,512.

828 SECTION 86. Item 7010-0005 in section 2 of chapter 9 of the acts of 2025 is hereby
829 amended by striking out the words “June 30, 2026” and inserting in place thereof the following
830 words:- January 31, 2027.

831 SECTION 87. Item 8100-0102 of section 2 of chapter 9 of the acts of 2025 is hereby
832 amended by striking out the figure “\$52,000,000”, each time it appears, and inserting in place
833 thereof, in each instance, the following figure:- \$55,000,000.

SECTION 88. Section 100 of chapter 9 of the acts of 2025 is hereby amended by striking out the figure “2025” and inserting in place thereof the following figure:- 2026.

SECTION 89. Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the General Laws or any other general or special law to the contrary, the commissioner of capital asset management and maintenance may, in consultation with University of Massachusetts, Bridgewater State University and Massasoit Community College, transfer the care and control of 226-236B Main street in the city of Brockton from the University of Massachusetts, Bridgewater State University and Massasoit Community College to the executive office of labor and workforce development. The parcel of land to be transferred to the executive office of labor and workforce development is more particularly described in a deed recorded in the Plymouth county registry of deeds in certificate of title number 121531, document number 728933.

SECTION 90. Notwithstanding section 23 of chapter 59 of the General Laws, section 31D of chapter 44 of the General Laws or any other general or special law to the contrary, a city or town may amortize over fiscal years 2027 to 2029, inclusive, in equal installments or more rapidly, the amount of its snow and ice removal deficit for fiscal year 2026. The commissioner of revenue shall issue guidelines or instructions for reporting the amortization of deficits authorized by this section. The local appropriating authority, as defined in section 21C of said chapter 59, shall adopt a deficit amortization schedule in accordance with the department of revenue’s guidelines or instructions under this section before setting the municipality’s fiscal year 2027 tax rate.

SECTION 91. Notwithstanding section 23 of chapter 59 of the General Laws, section 31 of chapter 44 of the General Laws or any other general or special law to the contrary, with the

approval of the director of accounts, a city or town may amortize over the subsequent 3 fiscal years, in equal installments or more rapidly, the amount of its deficit related to the outbreak of the 2019 novel coronavirus, also known as COVID-19, and subsequent variants. The commissioner of revenue shall issue guidelines or instructions for reporting the amortization of deficits authorized by this section. The local appropriating authority, as defined in section 21C of said chapter 59, shall adopt a deficit amortization schedule in accordance with the department of revenue's guidelines or instructions under this section before setting the municipality's next fiscal year tax rate.

SECTION 92. Notwithstanding any general or special law to the contrary, in each of fiscal years 2026 and 2027, the comptroller, at the direction of the secretary of administration and finance, shall transfer from the General Fund to the Massachusetts Offshore Wind Industry Investment Trust Fund established in section 9A of chapter 23J of the General Laws an amount not to exceed \$35,000,000; provided, that not less than 15 days in advance of the transfer, the secretary shall certify the amount to be transferred, to the chairs of the senate and house committees on ways and means.

SECTION 93. Notwithstanding any general or special law to the contrary, for fiscal year 2026, the secretary of administration and finance shall transfer funds from the Communications Access Trust Fund established pursuant to section 2XXXXXX of chapter 29 of the General Laws in the following manner: \$10,000,000 to the department of correction; \$1,653,987 to the Bristol sheriff's office; \$108,712 to the Hampshire sheriff's office; \$429,193 to the Berkshire sheriff's office; \$567,296 to the Barnstable sheriff's office; \$15,152 to the Dukes County sheriff's office; \$1,552,291 to the Essex sheriff's office; \$392,076 to the Franklin sheriff's office; \$538,188 to the Hampden sheriff's office; \$1,525,788 to the Middlesex sheriff's office; \$784,043 to the Norfolk

879 sheriff's office; \$1,199,999 to the Plymouth sheriff's office; \$2,191,927 to the Suffolk sheriff's
880 office; and \$1,562,237 to the Worcester sheriff's office; provided, however, that the secretary
881 may amend transfer amounts based on actual costs incurred and shall certify final transfer
882 amounts to the house and senate committee on ways and means no fewer than 15 days before
883 making any such transfers.

884 SECTION 94. Notwithstanding any general or special law to the contrary, to account for
885 any timing discrepancy presented by the initial application of paragraph (i) of subsection (b) of
886 section 2EEEEEEof chapter 29 of the General Laws relating to the Commonwealth Federal
887 Matching and Debt Reduction Fund, said section shall not apply to the determination of the
888 applicability of fiscal year 2026 interest transfers.

889 SECTION 95. Section 20 shall take effect on July 1, 2026.

890 SECTION 96. Sections 29 and 30 shall take effect July 1, 2027.

891 SECTION 97. Section 46 shall take effect 1 year after the effective date of this act.